

Arvind Singh v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 5 July 2022 · WRIT - C No. 8910 of 2022 · **Liberty to object under Para 6.5; coercion stayed**

HEADNOTE

Writ against a recovery certificate for Rs. 3,43,084 disposed without findings on merits. The petitioner was given four weeks to object under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee, the objection to be heard and decided preferably within four weeks. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Arvind Singh challenged, before the Allahabad High Court, a recovery certificate dated 19 July 2021 (RC Form-2) issued by the power distribution corporation for Rs. 3,43,084 under a writ of demand, with coercion on default. He also asked that no coercive step be taken until final assessment under the Electricity Act, 2003. The corporation stated, on instructions, that he might object to the demand and that the objection would be decided in accordance with law within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to recovery demand

HOLDING

Without any opinion on the merits, the writ was disposed of with liberty to the petitioner to submit, within four weeks, an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent No. 2, with a certified copy of the order. If submitted in time, respondent No. 2 shall decide it in accordance with law, expeditiously and preferably within four weeks, after a reasonable hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ seeking certiorari against the recovery certificate was disposed, without a finding on the demand, by liberty to file an objection under Para 6.5 before respondent No. 2. ¶ 4-5

clause-6.5-statutory-remedy On the distribution corporation's statement, a Para 6.5 objection, to be decided after hearing within a short fixed period, was treated as the remedy for the disputed recovery of Rs. 3,43,084. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 19.07.2021 AND THE DEMAND OF RS. 3,43,084 WERE LAWFUL, AND WHETHER FINAL ASSESSMENT UNDER THE ELECTRICITY ACT, 2003 REMAINED OUTSTANDING

The Court expressed no opinion on the merits and left the objection to respondent No. 2. ¶ 4